

IN THE SUPREME COURT OF BANGLADESH  
HIGH COURT DIVISION  
(CIVIL REVISIONAL JURISDICTION)

Present:

**Mr. Justice Md. Moinul Islam Chowdhury**

**Civil Revision No. 2638 of 2014**

Shaheen Munshi @ Md. Shaheen Munshi

--- Defendant-respondent-petitioner

=Versus=

Md. Nurul Islam and others

---Plaintiff-appellant-opposite-parties

Mr. S.M. Azmal Hossain, Advocate

----- For the petitioner.

Mr. Md. Humayun Kabir with

Mr. Md. Al-Amin, Advocates

----- For the opposite-party No.1

Heard on 16.02.2017 and

**Judgment on 16.03.2017**

At the instance of the present defendant-respondent-petitioner, Shaheen Munshi @ Md. Shaheen Munshi, this Rule has been issued calling upon the plaintiff-appellant-opposite-party to show cause as to why the judgment and order dated 08.07.2014 passed by the learned District Judge (in-charge), Barisal in Misc. Appeal No.31 of 2014 setting aside the order dated 01.12.2013 passed by the learned Joint District Judge, 1<sup>st</sup> Court, Barisal in Title Suit No.126 of 2013 should not be set aside.

The relevant facts for disposal of the Rule, inter alia, are that the present opposite-party No.1as the plaintiff filed the Title Suit No.126 of 2013 in the Court of the learned Joint District Judge, Court No.1, Barisal

praying for a declaration of entitlement upon  $\frac{1}{4}$  portion share of owner of the Minibus No. Pabna Ba-48 (Registration No. Dhaka-Cha 3542). It is stated that Bimol & Shankar was the original owner, who sold the minibus by a deed to one Farida Yasmeen. Farida sold to Kamrul Hasan  $\frac{1}{4}$  share of the ownership and the said Kamrul became member of Minibus Malik Shamitee in order to make himself eligible for election, but said Kamrul did not get membership or quota of the said shamitee. This suit has been filed for a declaration of entitlement upon the  $\frac{1}{4}$  portion of ownership of the said minibus. While the said suit has been pending the present plaintiff-opposite-party filed an application for temporary injunction under Order 39 Rules 1 & 2 of the Code of Civil Procedure. After hearing the parties, the learned trial Court issued an ad-interim injunction by an order dated 01.09.2013.

The present petitioner as the defendant contested the suit by filing a written objection denying the contention made in the application for temporary injunction. After hearing the parties the learned trial Court vacated the order of ad-interim injunction granted earlier by his order dated 01.12.2013. Being aggrieved the present plaintiff, as an appellant preferred the Miscellaneous Appeal No.31 of 2014 in the Court of the learned District Judge, Barisal, who allowed the appeal by his judgment and order dated 08.07.2014. This revisional application has been filed challenging the order and the Rule was issued thereupon.

Mr. S.M. Azmal Hossain, the learned Advocate appearing for the petitioner submits that the learned trial Court fixed a date of the application for temporary injunction hearing on merit on 15.01.2014 but the learned lower Appellate Court most illegally allowed the appeal without keeping any space of opportunity of hearing of the application of temporary injunction for hearing on merit which resulting in an error in the decision occasioning failure of justice.

The Rule has been opposed by the opposite-party No.1.

Mr. Md. Humayun Kabir, the learned Advocate appearing with the learned Advocate Mr. Md. Al-Amin for the opposite-party submits that on the prayer of the present plaintiff-opposite-party the Court passed an ad-interim order of injunction restraining the defendant from running the minibus by his own control alone or from enjoying the profits from the minibus and also from an absolute possession of the said minibus. The trial Court after hearing both the parties rejected to extend the period of the said an ad-interim injunction. However, the appellate Court allowed on the appeal preferred by the plaintiff-opposite-party in order to continue with the interim injunction.

I have to decide whether the interim order is necessary or not for the interest of justice.

In order to answer this question, I consider that the given facts in this case are important, because, the object of this suit is a minibus which was

subsequently owned by Farida Yasmeen, who transferred  $\frac{1}{4}$  portion of ownership to one Kamrul Hasan, who is the predecessor of the present opposite-party. On the other hand, the said Farida Yasmeen sold total ownership to Kulsum on 07.03.1999 and after several ownerships of the said minibus the present petitioner Shaheen Munshi acquired the ownership on 24.09.2008. There are some unusual factual aspects in the present case. Farida Yasmeen sold  $\frac{1}{4}$  portion of share with an ill-motive to Kamrul Hassan, who in turn sold to the present opposite-party. I am surprised to see that Kamrul purchased the land in order to get an undue benefit for becoming a member of a transport shamitee. Even he did not get membership as he desired with the said  $\frac{1}{4}$  ownership of a minibus, I do not have any information that whether the said  $\frac{1}{4}$  share have been reconvened to Farida Yasmeen. However, the present petitioner claimed Farida had an absolute ownership upon the minibus, who therefore, transferred the ownership to another person namely Kulsum and then Shaheber Hat Bus Kallayan Shamitee. The said Shamitee then transferred Tofazzal and who in turn transferred to Abdur Rashid and finally it was transferred to the present petitioner Shaheen Munshi.

The settled principle of law for an order of injunction is that the claimant has to prove the possession of upon the property. There is a serious dispute as to the possession of the minibus in question, however, the present plaintiff-opposite-party submits that the bus is not managed and

controlled by him. It therefore, can be inferred that the bus is at present in the possession of the present defendant-petitioner namely Shaheen Munshi. Therefore, the application for temporary injunction under order 39 Rules 1 & 2 filed by the present plaintiff-opposite-party has been frustrated as the main element for an injunction of possession is not proved. However, for the interest of justice the suit pending in the Court of the learned Joint District Judge, Court No.2, Barisal is required to be concluded after hearing the parties finally to trial of the Title Suit No.126 of 2013 on an urgent basis.

In view of the above discussions, it transpires to me that a status-quo order is required as to the possession and the ownership because, the ownership and possession are to be settled by the trial Court at the conclusion of the suit.

Accordingly, this Rule is disposed of.

In the result, the Rule is disposed of with the following directions.

The parties are directed to maintain status-quo regarding the Minibus No. Pabna Ba-48 (Registration No. Dhaka-Cha 3542) until the final disposal of the suit being the Title Suit No.126 of 2013, pending in the Court of the learned Joint District Judge, Court No.1, Barisal.

The learned Joint District Judge, Court No.1, Barisal is also directed to hear the matter and conclude the Title Suit No.126 of 2013 within 4(four) months from the date of receipt of this judgment and order without

allowing any unnecessary and fictitious prayer for adjournment as the learned Advocates for both the parties agreed to conclude it within the above stipulated period of time.

The office is directed to communicate this judgment and order to the learned Joint District Judge, Court No.1, Barisal at once.